

OUTLINE OF EVIDENCE – MR CORY LEA SHEPHERD (APPELLANT)

Served pursuant to direction 2 of the Further Directions Order (3) dated 19 August 2026. Not filed in the Industrial Registry.

The Appellant will give evidence of the following.

1. **Employment.** Commenced at Logan Hospital Switchboard in [MONTH] 2019; permanent from 3 March 2021; a continuous shift worker; full time from 16 October 2023.
2. **The role.** Receiving emergency response notifications and distributing them to the correct response groups per emergency code procedures, "strictly adhering to protocols and timeframes"; maintaining the contact and paging numbers on which emergency paging depends; keeping "call queues to minimum at all times"; the systems operated concurrently and the call and emergency-code volume across a shift.
3. **The database and the contact book.** That from 18 July 2023 operators could no longer correct entries; that corrections went to Ms Stibbard or Ms Taylor; that the Contact & Number Changes book was removed from the operators' room; and what that meant when a number was wrong, including overnight, at weekends and on public holidays.
4. **The directives.** The after-hours on-call arrangement of 15 April 2024, the data-entry process of 19 April 2024 and the call-routing change of 9 May 2024; that he was not consulted before any of them; and what each required of him.
5. **Ms Taylor's presence and hours.** His observation of when she was and was not present across 2023–2024; that her office hours were not known to the operators; and his request of 15 May 2024 that she state them to the department.
6. **What happened at the console.** What he observed when contact details were wrong — calls for emergency responses and for medical teams reaching the wrong destination between 2 and 8 May 2024, and delays to urgent results reaching treating staff — and what he did on each occasion.
7. **The communication book.** The entry he wrote on or about 6 June 2023 about updating on-call contact numbers; its removal; and what was said to him afterwards, and in front of whom.
8. **August–September 2023.** The concerns raised in writing on 7 August 2023, the meeting that followed, and the responses of Ms Taylor and Ms Reese.
9. **Special pandemic leave, February 2024.** Being unwell with COVID-19; how many times he submitted the request and what he attached; the reasons given for each decline; and the approval given on the same material.
10. **13 and 15 May 2024.** That he made a complaint on 13 May 2024, later determined to be a public interest disclosure (content not set out); that on 15 May 2024 he was directed to retract the email in which he had asked about office hours; and his knowledge of the email of 9 May 2024 in which Ms Taylor asked another person to confirm her hours.
11. **Union representation.** When and to whom he expressed interest in becoming the Switchboard delegate; what followed; and his endorsement on or about 3 November 2025.
12. **Pay.** The public holidays he was not rostered to work between February and April 2024 and the difference that made to his pay compared with colleagues; the errors Payroll identified on 3 May 2024; and when they were corrected.
13. **The rostering pattern.** That rostering errors affecting his line recurred across successive roster periods, not once; when he identified them and to whom; and the acknowledgement in Ms Reese's email of 10 May 2024 of "a few rostering errors made by Chloe with regards to Cory's line in past rosters".
14. **17 and 18 March 2024.** Where he lived and his travel time each way; finishing at 23:00 on 17 March and commencing at 06:00 on 18 March; the rest actually available to him after travel; the sleep he obtained; performing the duties at paragraph 2 in that condition on 18 March; and the sick leave taken on 19 March 2024.
15. **Fatigue — what he raised, and what was never in place.** The fatigue and rostering concerns he raised and when; sending the fatigue toolkit to Ms Taylor for review and receiving no response; his request of 8 April 2024 and the refusal given on 1 May 2024; and that at no time before 30 June 2024 was he given fatigue risk management training, or a fatigue or psychosocial risk assessment of his rostering, or any fatigue management process at the Switchboard.
16. **After 18 June 2024.** Meetings scheduled while he was on certified leave; that his employment was ended under abandonment provisions while he held current medical certificates; and that he was subsequently reinstated.
17. **Onset and effect.** The symptoms he experienced and when; the effect on his sleep, health and daily functioning across the period; the onset date of 18 June 2024; attending his general practitioner and lodging his application on 1 July 2024; and his treatment since. He offers no clinical or diagnostic opinion.
18. **Documents.** He will identify and produce the rosters and payslips for the relevant periods; his emails and messages with his line manager and the Director; the leave and payroll records produced by the employer; the role description; and the letter of Metro South Hospital and Health Service of 5 June 2026 (ref K-LM26/729).

This outline states the topics on which the Appellant will give oral evidence. It is not a statement of evidence and is not verified.